CORAM: HER HONOUR HALIMAH EL-ALAWA ABDUL BAASIT (MRS), JUDGE, SITTING AT THE CIRCUIT COURT, DANSOMAN-ACCRA ON THE 3RD DAY OF JUNE, 2025.

SUIT NO.CCD/C8/07/24

1. BENJAMIN CROSBY DAVIS

2. ALEX DAVIS — **PLAINTIFFS**

VRS

1. CALEB JOSEPH DAVIS

2. BENJAMIN CROSBY DAVIS — **DEFENDANTS**

Parties present.

Alex Quartey Esq. for the Petitioner present.

Dora Bawaa Asamoah Esq. for the Respondent present.

JUDGMENT

Background

1. The Plaintiffs issued a Writ of Summons and Statement of Claim at the Registry of this Court on the 8/3/24 wherein they averred that they are the beneficial owners of House No. GA-597-2973, General C. C. Bruce Street, Dansoman-Accra (hereinafter referred to as the 'Property') whilst the Defendants are the children of the 1st Plaintiff. All parties live in different rooms in the property. It is the

Plaintiff's case that the Defendants, being children of the 1st Plaintiff have been living in the house rent free but have been smoking and gambling with their friends in the property, turned it to a meeting place with their friends making the property unsafe for keeping gadgets such as mobile phones.

2. The Plaintiffs averred further that the Defendants have been making excessive noise, using electricity without paying the right bills and constituting a nuisance to all and sundry despite consistent warning to them to desist from doing so. Plaintiffs contend that the behaviors of the Defendants and their friends have affected the peace and tranquility of the house making it impossible for all parties to live within the same property. Plaintiffs therefore prayed the Court for an Order directed at the Defendants to vacate the room they occupy in the property.

3. The Defendant filed a Statement of Defence where they admitted some but denied most of the averments contained in the Plaintiffs' Writ of Summons and Statement of Claim. The Defendants averred that the property is a family property built by the Plaintiffs' father and Defendants grandfather with enough rooms for family members to occupy. They added that all occupants of the property, including the Plaintiffs are not required to pay rent by virtue of their familial relation as well as inheritance.

4. It is the Defendants case therefore that the Plaintiffs have brought the instant case in bad faith simply because the Plaintiff threatened evict the Defendants because they failed and/or refused to take sides with him during divorce proceedings between the 1st Plaintiff and their mother. The Defendants averred that they do not intend living in the property forever but if the Court accedes to the prayer of the Plaintiffs, the effect is to render Defendants homeless and

expose them to vices and other ills on the street. Defendants concluded their Statement of Defence by stating that the Plaintiffs are not entitled to the sole relief sought as endorsed in the Writ of Summons and Statement of Claim.

5. Upon the closure of pleadings and at the Application for Directions stage, the Court referred all parties to the Court Connected Alternative Dispute Resolution Centre to attempt amicable settlement. However, the parties were unable to settle an, the following were the issues for determination;

   (a) Whether or not the house with number GA-597-2973, General C. C. Bruce Street, Dansoman is a family property?

   (b) Whether or not the rooms occupied by the Defendants form part of the 1st Plaintiff's portion of house number GA-597-2973, General C. C. Bruce Street, Dansoman.

   (c) Whether or not the behavior of the Defendants affects the tranquility of House Number GA-597-2973 General C.C Bruce Street, Dansoman.

   (d) Whether or not the Plaintiffs can eject the Defendants from House Number GA-597-2973 General C.C Bruce Street, Dansoman.

Analysis

6. In spite of the issues listed above, the Court relies on the authority of Nsowaa **and Another vs. Bamba and Another**; Suit No. J4/11/2016 [2017] GHASC 6, 26/01/2017, where it was held that Judges must carefully shape and adopt issues raised by the pleadings for the ultimate determination of the matters at stake. It is thus the position of the law that only those issues which are germane to the

determination of a case must be decided by the Court and not all issues concerning the dispute although the parties might have led evidence on them. (See **Michael Tetteh Anguah vs. Centre for Plant Medicine Research, Graphic Communications**; Suit No. AC/804/2015) 7th November, 2016).

7. As such, upon consideration of all processes filed in this matter, I modify the issues adopted with the view to achieving substantial justice as follows:
   (a) Whether or not the house with number GA-597-2973, General C. C. Bruce Street, Dansoman is a family property?

   (b) Whether or not the Plaintiffs can pray for an order to eject the Defendants from House Number GA-597-2973 General C.C Bruce Street, Dansoman.

Burden of Proof

8. This is a civil claim and the onus of producing evidence of any particular fact, as in all civil cases, is on the party against whom a finding of fact would be made in the absence of further proof. (See Section 17(a) and (b) of the **Evidence Act, 1975 (NRCD 323).** It is trite that matters that are capable of proof must be proved by producing sufficient evidence so that, on all the evidence, a reasonable mind could conclude that the existence of a fact is more reasonable than its non-existence. This is the requirement of the law on evidence under sections 10 (1) and (2) and 11(1) and (4) of the **NRCD 323.** The burden of producing evidence has been defined in Section 11 (1) of NRCD 323 as follows; "*11 (1) For the purpose of this Act, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling on the issue against that party*".

9. The burden of proof is also not static but could shift from party to party at various stages of the trial depending on the obligation that is put on that party on an issue. This provision on the shifting of the burden of proof is contained in Section 14 of NRCD 323 as follows: *'…except as otherwise provided by law, unless it is shifted, a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence that party is asserting...'* As such, the Plaintiffs have the burden of proving all the averments he made against the Defendants on a preponderance of probabilities. If they succeed in establishing their averments by evidence, the onus will then shift to the Defendants to lead some evidence to rebut same.

Issue One: Whether or not the house with number GA-597-2973 General C.C Bruce Street, Dansoman is a family property?

10. Plaintiffs averred in their Writ of Summons and Statement of Claim that they are the beneficial owners of the property and the Defendants stay on the property without paying rent but constitute nuisance, hence a prayer for an order to evict them from the property. In view of the sole relief, the Plaintiffs ought to demonstrate their capacity as far as the suit is concerned. The Plaintiff averred that they are the beneficial owners of the said property but apart from stating that they are the beneficial owners, the Plaintiffs could not lead any evidence either documentary or otherwise to convince the Court that they are indeed beneficial owners of the property.

11. The Court however observes that the said property belonged to the father of the Plaintiffs, hence their averment that they are the beneficial owners. The following

was captured by the records during cross-examination of the Plaintiffs by Counsel for the Defendants;

Q: You have stated that the house where you live with your sons who are the Defendants in this case was built by your father, the Defendants grandfather, not so?

A: Yes my Lady.

Q: It is also your case before the Court that the said house was gifted to you and the 2nd Plaintiff is your brother by your father, is that correct?

A: That is correct.

12. Although the Plaintiffs contend that the property was gifted to them, they were again unable to substantiate this assertion made during cross-examination. The Defendants, in paragraphs 5, 6 and 7 of their Witness Statement which was adopted as their Evidence in Chief testified as follows; *'…the house we all live in is a family property built by our grandfather (the Plaintiffs father) which he left in the occupation of the whole family and there has not been a single dispute over it in respect of ownership…it is also our case that our father and uncle have no property of their own, hence we all cohabit in our grandfather's house as families…the said house is big and have spacious and commodious rooms enough for the parties to live in and even have other apartments and rooms unoccupied…'*

13. The testimony of the Defendants suggests that the property is a family property and since Plaintiffs could not convince the Court that they are beneficial owners, the Court will have to determine whether the said property is indeed a family property. Counsel for the Plaintiffs in his Written Address filed on behalf of the Plaintiffs submitted among others that Defendants could not provide any

evidence to support their claim that the house is a family house. The Court is however of the opinion that it is the Plaintiffs' assertion that they are the beneficial owners and as such the burden is on them to prove same. Counsel for the Defendants in his Written Address filed on behalf of the Defendants submitted among others that it is the Plaintiffs who put across the case of personal ownership of the property and must therefore assume the burden of producing sufficient evidence in proof and establishment of their claim.

14. Counsel for the Defendants submitted further that the burden of the Defendants is to produce sufficient evidence to rebut the Plaintiffs' case. He relied on the case of **Nah. Phoenix samance Co. Ltd (2012) 2 SCGLR 1139**, where the Court held as follows; '…i*ndeed, what constitutes proof has been laid down in the celebrated case of* ***Majolagbe v Larbi 1959 GLR 190 at Page 192 relying on Khoury V. Ritcher*** *"Where a party makes an averment capable of proof in some positive way e g by producing documents, description of things, reference to other facts instances, and his averment is denied, he does not prove it by merely going into the witness box and repeating that averment on oath or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances from which the Court can be satisfied that what he avers is true…'*

15. The Defendants in their Witness Statement which was adopted as their Evidence in Chief testified in paragraphs 3 and 4 as follows; *'…we are the beneficial owners of the house in dispute … I state that this house was given to us by our father…'* These statements made by the Plaintiffs raises the presumption, unless rebutted that the said property belongs to the estate of the Plaintiffs late father. Regrettably, there is no evidence on record to convince the Court that ownership of the said property has been transferred to the Plaintiffs. Yet, the Plaintiffs strongly deny

that the property is a family property and the following was captured during cross-examination of the Plaintiffs by Counsel for the Defendants;

Q: You will also agree with me that it is the case of the Defendants that the house in fact is a family house and not your personal property, not so?

A: It is not so my Lady.

16. The onus therefore lies on the Court to determine whether the said property is a family property. To appreciate what constitutes a family property, there is the need to understand the definition of a family. The learned N. A. Ollenu in his book, the **Principles of Customary Land Law in Ghana**, 1985 at page 147 explained what constitutes the traditional family in Ghana as follows; *'…under Customary Law in Ghana, the family consists of the entire lineal descendants of a common ancestor either for purposes of ownership of property or for purposes of social life. The family may be of three kinds: it may be* ***matrilineal****, it may be* ***patrilinea****l depending upon the tribe and it may be* ***joint patrilineal and matrilineal…'***

17. The learned N. A. Ollenu, in another book titled **The Law Testate and Intestate Succession in Ghana**, 1966, at page 75 gave a detailed explanation of what constitutes a family as follows; *'…the immediate paternal family of a deceased male or female consists of his or her father, the fathers brothers and sisters and all who are paternally from the same father as himself or herself, i.e. his or her paternal brothers (if any), his or her paternal sisters (if any), in the case of a man, his own children and* ***paternal grandchildren*** *and in either case surviving children of all his or her children, and in either case, surviving children of all his or her paternal brothers, dead or alive, save that so long as their fathers lived, such children of brothers would not normally be regarded as principal members of the family-* ***Therefore the paternal family consists of a unit of all people, male and female, all of whom are descendants in the***

direct male line from a common male ancestor, however remote that ancestor may be…'

18. In view of the above, the next question to be answered is what constitutes a family property? Section 4 of **The Head of Family (Accountability) Act, 1985 (PNCL 114)** defines family property to include any property, whether movable or immovable, which belongs to the members collectively of a particular family or is held for the benefit of such members and any receipts or proceeds from such property. Again, the learned Ollenu J (op cit); defined family property as follows; *'… a building erected by a member of a family is regarded as a private property in his life time, but upon his death the privacy of the ownership dies with him, and the property becomes part and parcel of family property…'*. From the foregoing, the evidence on record shows that the said property was built by the late father of the Plaintiffs. There is however no evidence on record to show that the said property was gifted inter vivos, devised under a Will, Letter of Administration, and/or a Vesting Assent obtained in favour of either or both Plaintiffs.

19. The Court presumes again that the Plaintiffs may have improved on the property but the Courts in dealing with the issue of a member of a family who builds on a family land/property have variously noted that the land/property is an ancestral property therefore the member of the family who builds on it with his own money will have only a life interest in it as it is a family property. He cannot dispose of any interest in it which will extend beyond his life and cannot devise it under his Will. (See the cases of **Tetteh vs Annang** (1957) unreported, **Owoo vs Owoo** (1945) 11 WACA 81). The position of the law therefore is that there is

common ownership of property by members of a family. In other words, all property belonging to a family are held in common by all members of the family.

20. Every member has an inherent right to be granted portions of family land. The interest which a member of a family has in the general family property is an interest for his life. It follows that the member cannot dispose of an interest it holds in family land. According to Ollenu (supra) children of a male member of a family upon their father's death intestate do not acquire any rights or interests in a family property acquired by the father during his lifetime (See the case of **Amissah-Abadoo vs. Abadoo** [1974] GLR 110-132). In consideration of the above authorities, I therefore find that the subject matter property is a family property as same belongs to the estate of the Plaintiffs deceased father who is also the Defendants grandfather.

Issue Two: Whether or not the Plaintiffs can pray for an order to eject the Defendants from House Number GA-597-2973 General C.C. Bruce Street, Dansoman.

21. Having determined that the subject matter property is a family property, the next issue for determination is whether the **Plaintiffs can eject and or evict the Defendants from the property.** It is trite that in dealing with a family property before a Court, a party must be clothed with the capacity to do so. Section 1 of PNDCL 114, provides as follows; *'…notwithstanding any law to the contrary any Head of family or any person who is in possession or control of, or has in his custody, any family property shall be accountable for such property to the family to which the property belongs…'* In the case of **Samuel Oblie & 2 Others vs. Tetteh Lancaster,** Civil

Appeal, NO: J4/29/2015, 15/03/2016, the Supreme Court stated as follows; *'…under customary law, which is part of the common law of Ghana, it is axiomatic that it is the Head of Family who has capacity to sue and be sued in matters concerning family property. The only exceptions to this rule have been well-established in the cases of* ***Kwan vs Nyieni*** *[1959] GLR 67 @ 68;* ***Amponsah vs. Kwatia*** *[1976] 2 GLR 189;* ***Yormenu vs Awute*** *[1987] 1 GLR 9;* ***In Re Ashalley Botwe Lands****;* ***Adjetey Agbosu & Others vs Kotey & Others*** *[2003-2004] 1 SCGLR 420 @ 423;* ***Manu vs Nsiah*** *[2005-2006] SCGLR 25 and* ***In Re Neequaye (Decd); Adee Kotey vs Kootso Neequaye*** *[2010] SCGLR 348...'*

22. **In Re Ashalley Botwe Lands**; **Adjetey Agbosu and Ors vs Kotey and Ors** [2003-2004] 1 SCGLR 420 at page 423 cited (supra), the Supreme Court explained the principle as follows: *'…the general rule recognized in* ***Kwan v Nyieni****, namely, that the head of family was the proper person to sue and be sued in respect of family property was not inflexible. There are situations or special circumstances or exceptions in which ordinary members of the family could in their own right sue to protect the family property, without having to prove that there was a head of family who was refusing to take action to preserve the family property. The special or exceptional circumstances include situations where: (a) a member of the family had been authorized by members of the family to sue; or (b) upon proof of necessity to sue…'*

23. In view of the above authorities and the sole relief of ejection of the Defendants from the property, there is no evidence to show that the Plaintiffs are heads of the family and so the assumption is that they are ordinary members of the family. So that if they are deemed as ordinary members of the family, then they can institute this action if they have been authorized by other members of the

family to sue and/or there is proof of the necessity to sue. Again, there is no proof that the Plaintiffs were authorized by members of the family as the Plaintiffs averred that they are the beneficial owners of the property. The Court therefore has to again ascertain from the evidence on record for a proof that it was necessary for the Plaintiffs to institute the instant action.

24. In their Statement of Claim, the basis of Plaintiffs claim is summarized to include the fact that the Defendants have been smoking and gambling, turned the house into a meeting place with friends, making excessive noise and using electricity without paying bills. The Defendants have been warned several times as their behaviour have affected the peace and tranquility of the house as they have become a nuisance. These statements were repeated in the Plaintiffs' Witness Statement. The question on the mind of the Court is whether these are issues that should have necessitated a Court action. As far as the Court is concerned, the issues raised by the Plaintiffs are issues which could have been resolved amicably outside this Courtroom as the parties include a father and his children.

25. The Court referred the parties to the Court Connected Alternative Dispute Resolution Centre to have the dispute amicable settled but the parties failed to settled. The Court was informed that the 1st Plaintiff, being the father of the Defendants frustrated the process of settlement and insisted on the Court making a determination. This was captured by the records when the 1st Plaintiff was cross-examined by Counsel for the Defendants;

> *Q: Before this case was filed in this Court and even after it was filed, there have been attempt by your children to make peace with you through the*

elders of the family as well as the Court Connected ADR but you refused all these attempts, not so?

A: *Yes my Lady, it is so, with the family, they were not those who went for them, it was their mother and so they are not showing any remorse that they want to make peace with me. It is their mother who organized those people and I know them so I refuse to see them. With the ADR, why I refuse is that I know the Defendants very well and I was not ready to banter with them.*

26. The testimony of the 1st Plaintiff depicts a bitter and angry father who is not pleased with the sight of the children as well as their actions and inactions. The Court therefore wonders if there is more to the basis of the instant dispute than has been presented before the Court. The testimony of the 1st Plaintiff and specifically during cross-examination reveals that the 1st Plaintiff divorced his wife, being the Defendants mother. The 1st Plaintiff during kept making reference to certain action and inactions of the Defendants' mother and to some extent blamed the woman for how the Defendants have turned out. The following ensued during cross-examination by Counsel for the Defendants;

Q: *As their father, you will agree with me that you are the best and first role model to your sons not so?*

A: *My Lady, I won't agree with that, because these Defendants since their childhood, their mother has been with them all the time because I am always on transfer most of the time and so they and their mother gang up against me all the time. Insulting me so I have never been their role model.*

27. The evidence on record suggests further that the instant dispute was triggered as a consequence of the divorce proceedings between the 1st Plaintiff and the Defendants mother. During cross-examination of the Defendants by Counsel for the Plaintiffs, the following was captured by the record of proceedings;

> Q: *During the divorce proceedings involving the 1st Plaintiff and your mother, did the 1st Plaintiff invite you or your brother to come and testify for him?*
>
> A: *No, he did not.*
>
> Q: *You would agree with me that the house in dispute is for the children of your grandfather and no one else?*
>
> A: *Yes, I do agree to that. I and the 1st Defendant loved our father so much and the origin of this whole issue started during the divorce proceedings. The 1st Plaintiff wanted us to be on his side, but the 1st Defendant and I made it clear to him and my mum that they are adults and can resolve their marriage without us being part of it, so we not agreeing to be part and this brought all these issues to us.*

28. To my mind therefore and from the foregoing, the basis of the dispute before the Court appears to be more than what has been presented. In spite of this, the Court will still proceed to establish whether the alleged issues of drinking, smoking, living rent free, not paying electricity bills are issues that should have necessitated a Court action instituted by the ordinary members of a family in respect of a family property. The Defendants have denied the allegations made by the Plaintiffs and the following ensued when the 2nd Defendant was cross-examined by Counsel for the Plaintiff;

Q: Do you smoke?

A: No.

Q: Does your brother also smoke?

A: No, he does not.

29. On the issue of payment of electricity bills, the Defendants were subjected to cross-examination by Plaintiffs' Counsel and the following was captured;

Q: Do you have your own ECG meter to your room?

A: No.

Q: How do you get light to your room?

A: Through the main meter of the house.

Q: Is the main meter in the house a prepaid or postpaid?

A: Prepaid.

Q: Who collects money for prepaid credit when same gets finished?

A: No one does.

Q: So are you telling this Court that none of the users of the main ECG meter in the house buys credit for the meter?

A: No. We requested for ours and then, it was cancelled.

Q: You are telling this Court that you have been using light from the ECG for free?

A: Yes, we do. We wanted to make payment, but 1st Plaintiff was not ready to take it.

30. Having denied the allegations levelled against the Defendants by the Plaintiffs, Counsel for the Plaintiffs also sought to determine if there has been attempt at resolving the resolving the dispute when he asked the following;

    Q: Since the beginning of this suit, have you and your brother attempted to render any form of apology to the 1st Plaintiff?

    A: Yes, we have tried, and even the Court gave us a chance to sort things out at ADR, but he refused. We even spoke to some family members to assist us resolve the whole issue going on and he refused.

31. From the foregoing, the Court is convinced that the basis of this suit does not include the proof of necessity to sue as stated in the case of **In Re Ashalley Botwe Lands**, (supra). Assuming without admitting that there was necessity to sue, the Plaintiffs woefully failed to lead cogent, substantial and sufficient evidence to convince the Court on all the assertions made. The onus was on the Plaintiffs to convince the Court and on the authority of **Majolagbe vs Larbi,** (supra), a party who alleges must prove with cogent evidence and not merely mount the witness box to testify. I am further guided by the principle that the standard of proof in civil cases is on the preponderance of the probabilities. (See Sections 11(4) and 12(1) of the Evidence Act, 1975 [NRCD 323] and the decisions of this Court in **Adwubeng vs Domfeh** [1996-97] SCGLR 660; **Sarkodie vs. F. K. A. Co Ltd** [2009] SCGLR 65; **Asante-Appiah vs Amponsah** [2009] SCGLR 90; **Yaa Kwasi vs Arhin Davies** [2007-2008] SCGLR 580.

Conclusion

32. In light of the foregoing and upon consideration of all the processes filed, the testimony of parties as well as the totality of evidence on record, I find that on the balance of probabilities, the Plaintiffs could not prove their case against Defendants. The Plaintiffs action against the Defendant accordingly fails and same is dismissed.

H/H HALIMAH EL-ALAWA ABDUL-BAASIT

CIRCUIT COURT JUDGE